

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #07	CCRB Case #: 201608430	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 09/28/2016 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/28/2018	Precinct: 101		
Date/Time CV Reported	CV Reported At: Precinct	How CV Reported: Phone	Date/Time Received at CCRB Sun, 10/02/2016 1:40 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Dias	04654	950320	101 PCT
2. POM Jonathan Donnelly	02103	960472	101 PCT
3. POM Nicholas Velotti	09432	949767	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Dias	Abuse: Police Officer Matthew Dias entered § 87(2)(b) in Queens.	A . Exonerated
B . POM Jonathan Donnelly	Abuse: Police Officer Jonathan Donnelly entered § 87(2)(b) in Queens.	B . Exonerated
C . POM Nicholas Velotti	Abuse: Police Officer Nicholas Velotti entered § 87(2)(b) in Queens.	C . Exonerated
D . POM Matthew Dias	Force: Police Officer Matthew Dias used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Matthew Dias	Discourtesy: Police Officer Matthew Dias spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Matthew Dias	Abuse: Police Officer Matthew Dias threatened to arrest § 87(2)(b)	F . Exonerated

Case Summary

On October 2, 2016, Sgt. Patrick Olewinski from the 101st Precinct filed this complaint with the CCRB on behalf of § 87(2)(b) via the CCRB's Call Processing System. On September 28, 2016, at approximately 6:30 p.m., Police Officer Matthew Dias, Police Officer Jonathan Donnelly and Police Officer Nicholas Velotti from the 101st Precinct entered § 87(2)(b) in Far Rockaway, to evict all the residents from the first floor of the house (**Allegation A, B and C**). § 87(2)(b) had been running a private daycare, "§ 87(2)(b)" from the first floor residential area. § 87(2)(b) also alleged that PO Dias pushed her against the wall and placed her arms behind her back (**Allegation D**). As a result of the physical force used by PO Dias, § 87(2)(b) allegedly sustained a sprained neck, tissue damage and bruising to her right knee as well as pain in her left thumb. PO Dias allegedly told § 87(2)(b) to, "Get the fuck out of the house" (**Allegation E**) and stated that he was going to arrest her if she did not leave (**Allegation F**). This was observed by § 87(2)(b)'s employee, § 87(2)(b) who was present at the location. § 87(2)(b) was not arrested or issued any summonses during this incident.

The investigation did not obtain any video footage of the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation due to § 87(2)(b)'s injuries.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
- § 87(2)(b) filed a Notice of Claim with the NYC Comptroller's Office on § 87(2)(b) (Board Review 02). There were no details in the Notice of Claim pertaining to what § 87(2)(b) was alleging or how much money she was seeking as redress.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 03).
- PO Dias has been a member of the service for five years. He has been the subject of 10 allegations, stemming from three complaints, one of which was substantiated (Board Review 04).
 - In 201502380, an allegation involving property damage was substantiated against PO Dias, and the CCRB recommended charges. The NYPD has yet to institute any punishment.
- PO Donnelly has been a member of the service for a year. He has been the subject of one allegation, stemming from one complaint. None of the allegations were substantiated § 87(2)(g) (Board Review 05).
- PO Velotti has been a member of the service for a year. He has been the subject of one allegation, which was not substantiated, § 87(2)(g) (Board Review 06).

Potential Issues

- Given that this case was closed then reopened nearly two months later, § 87(2)(b) was not interviewed until nearly three months after the incident date.
- § 87(2)(b) stated that she possessed video footage of the incident, which she recorded with her cellphone. However, due to damage to the phone, the recording could not be obtained.
- The city marshal's name and contact information was unknown to all parties involved in this complaint. Additionally, there was no documentation identifying him. § 87(2)(g) .

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Matthew Dias entered § 87(2)(b) in Queens.

Allegation B - Abuse of Authority: Police Officer Jonathan Donnelly entered § 87(2)(b) in Queens.

Allegation C - Abuse of Authority: Police Officer Nicholas Velotti entered § 87(2)(b) in Queens.

It is undisputed that PO Dias, PO Donnelly and PO Velotti entered § 87(2)(b) in Queens to assist a city marshal in an eviction procedure.

Both § 87(2)(b) and § 87(2)(b) stated that PO Dias, PO Donnelly, PO Velotti and an unidentified city marshal walked into § 87(2)(b) without first asking for consent to enter. § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) agreed that the officers and city marshal generally remained in the hallway of § 87(2)(b) and did not go anywhere else in the house (Board Review 07 and Board Review 08).

PO Dias stated that once he arrived at the location with PO Donnelly and PO Velotti, he interacted with a city marshal. The city marshal showed PO Dias a warrant issued by the Queens County Housing Court, which listed "apartment one" of § 87(2)(b) as the eviction location. The city marshal entered § 87(2)(b) first, while PO Dias, PO Donnelly and PO Velotti entered after him. PO Dias further explained that he and his partners were at the location to preserve peace and aid the city marshal in the eviction (Board Review 09).

PO Donnelly stated that upon arriving at § 87(2)(b) a city marshal showed him an eviction warrant for "apartment one" of the house. PO Donnelly along with PO Dias and PO Velotti followed the city marshal to the front door of § 87(2)(b). The marshal informed § 87(2)(b) who was at the door, that she was being evicted and had to leave the house. He then entered the house and PO Dias, PO Donnelly and PO Velotti followed him inside. PO Donnelly explained that the warrant gave the city marshal authority to make sure no one was living at the evicted location (Board Review 10).

PO Velotti was present during the conversation with the city marshal, however, unlike his partners, he did not see the eviction warrant. Based on the conversation with the city marshal and PO Dias, PO Velotti was informed that the eviction warrant was for apartment one of § 87(2)(b). PO Velotti stated that the city marshal entered § 87(2)(b) first, and the officers followed him after a moment. The front door of the house was unlocked and PO Velotti did not remember if any of the officers asked § 87(2)(b) for consent to enter the location (Board Review 11).

While assisting a city marshal with the execution of an eviction warrant, police officers are responsible for preservation of peace and protection of life and property. In order to ensure the peacefulness of the eviction process, officers are required to enter the location with the city marshal and remain there until the eviction is complete. Patrol Guide Procedure, 214-13 (Board Review 12). Additionally, individuals who are being evicted have no legal right to prevent police officers accompanied by a city marshal from entering the place of the eviction. People v. Davis, 169 A.D.2d 16 (2nd Dept. – 1991) (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A, Allegation B and Allegation C** be closed as **exonerated**.

Allegation D – Force: Police Officer Matthew Dias used physical force against § 87(2)(b)

§ 87(2)(b) stated that, following a brief argument in which she refused to leave the location, PO Dias placed both of his hands on her back and pushed her against the wall. When pushed, § 87(2)(b) was approximately four feet away from the wall. PO Dias did not issue § 87(2)(b) any commands prior to pushing her against the wall. Once § 87(2)(b)'s body made an impact with the hallway wall, PO Dias grabbed § 87(2)(b)'s hands, and placed them behind her back. § 87(2)(b) was under the impression that PO Dias was going to handcuff her; however, she was never handcuffed during the incident. PO Dias then held § 87(2)(b) against the wall for approximately fifteen minutes. He was observed holding § 87(2)(b) against the wall by § 87(2)(b) who, according to § 87(2)(b) was not present during the initial push. § 87(2)(b) did not immediately feel pain and noticed the bruising on her leg following morning. In her sworn statement, § 87(2)(b) explained that as a result of being pushed against the wall by PO Dias, she sustained a sprained neck, tissue damage in her right knee and pain to the left thumb (Board Review 07).

During her CCRB interview, which occurred over a two and a half months after the incident date, § 87(2)(b) wore a protective brace on her left hand (Board Review 14), a protective brace on her right knee (Board Review 15) and walked with a cane. § 87(2)(b) also provided a photograph of the bruising on her right knee (Board Review 16). § 87(2)(b) explained that she wore the protective braces and walked with a cane as a result of being pushed against the wall by PO Dias.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) stated that § 87(2)(b) told PO Dias that she was not leaving the location, and PO Dias became frustrated and pushed her against the wall with both of his hands. PO Dias did not issue § 87(2)(b) any commands and was approximately two feet away from her before pushing her. Once § 87(2)(b)'s body made impact with the wall, PO Dias grabbed § 87(2)(b)'s hands and pulled them behind her back. PO Dias also pressed his knee against the middle of § 87(2)(b)'s back. § 87(2)(b) complained of pain to her back, her knee and her hand to PO Dias (Board Review 08).

PO Dias stated that § 87(2)(b) was speaking with her hands and getting very close to the city marshal. § 87(2)(b) did not make any physical contact with the marshal, but was close enough to make him tilt his head back to avoid her advancements. PO Dias, who described § 87(2)(b) as “frustrated”, interpreted her behavior as a sign of aggression. As he believed that § 87(2)(b) may strike the city marshal, PO Dias grabbed § 87(2)(b) by her left wrist and placed another hand on her back. He then escorted § 87(2)(b) from the apartment into the hallway. As they crossed into the hallway, § 87(2)(b) braced herself against the door with both hands. PO Dias informed § 87(2)(b) that she could not hold herself on the door and slightly pushed § 87(2)(b)'s back in an attempt to move her forward. PO Dias described the push as the “minimal amount of force” necessary to escort her to the hallway. PO Dias denied ever pushing § 87(2)(b) against the wall. Throughout the interaction, § 87(2)(b) did not stumble, fall or complain of any pain or injuries (Board Review 09).

PO Donnelly stated that PO Dias placed one of his hands on § 87(2)(b)'s hand and the other on her back, and then escorted her to the front of the house. He did not observe § 87(2)(b) grabbing onto the door leading to the hallway. PO Donnelly was inside of the apartment while § 87(2)(b) was being escorted outside. Therefore, he did not see the interaction between PO Dias and § 87(2)(b) which allegedly occurred in the hallway. PO Donnelly did not see PO Dias push § 87(2)(b) against the wall or pull her hands behind her back. He did not observe § 87(2)(b) trip, fall or lose her balance at any point during the interaction. § 87(2)(b) also did not complain of pain or injuries (Board Review 10).

PO Velotti stated that § 87(2)(b) became “loud” and got “into the marshal’s face.” In response to § 87(2)(b)'s behavior, PO Dias placed his hand on § 87(2)(b)'s back and lightly escorted her to the front steps of the house. PO Velotti followed PO Dias and § 87(2)(b) outside. § 87(2)(b) was not pushed or pressed against the wall by PO Dias and did not trip, fall, or make contact with the wall. § 87(2)(b) also did not complain of any pain or injuries, and PO Velotti did not observe any injuries on § 87(2)(b) (Board Review 11).

The TRI report prepared by PO Dias and the corresponding ISAR report noted that § 87(2)(b) alleged that she was “thrown against a wall” and complained of substantial pain and bruising on the right leg. Neither report listed additional injuries or details about the use of force (Board Review 17).

The Notice of Claim filed by § 87(2)(b) did not list any information pertaining to the physical force used by PO Dias and did not mention specific injuries sustained by § 87(2)(b) (Board Review 02).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E - Discourtesy: Police Officer Matthew Dias spoke discourteously to § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Matthew Dias threatened to arrest § 87(2)(b)

During her in person statement, § 87(2)(b) alleged that PO Dias told her to, “Get the fuck out of the house,” and stated that he was going to arrest her if she did not leave. § 87(2)(b) did not allege this in her initial complaint on October 2, 2016 or during her phone statement on October 19, 2016. § 87(2)(b) acknowledged that PO Dias instructed her to leave the house on a previous occasion and that she refused. § 87(2)(b) also explained that both the threat of arrest and the discourtesy were witnessed by her employee, § 87(2)(b) (Board Review 07).

§ 87(2)(b) stated that the police officers did not make any discourteous statements toward § 87(2)(b) and did not tell her to, “Get the fuck out of the house.” § 87(2)(b) also added that she was present for the majority of the encounter with the police officers (Board Review 08).

PO Dias stated that § 87(2)(b) acted in a frustrated and aggressive manner. § 87(2)(b) also stated to the city marshal that she was not going to leave the house. In response to her behavior, PO Dias informed § 87(2)(b) that she had to follow the city marshal's instructions and that he could arrest her for Obstructing Government Administration. PO Dias denied using any discourtesies while interacting with § 87(2)(b) and stated that he did not tell her to, "Get the fuck out of the house" (Board Review 09).

PO Donnelly explained that § 87(2)(b)'s constant refusal to leave the house was interfering with the marshal's job. PO Donnelly did not hear PO Dias tell § 87(2)(b) that he could arrest her. However, PO Donnelly stated that if § 87(2)(b) continued to refuse to leave the premise, she could in fact be arrested for Obstructing Government Administration. PO Dias did not use any discourtesies while interacting with § 87(2)(b) and did not tell her to "Get the fuck out of the house" (Board Review 10).

PO Velotti explained that § 87(2)(b) was loud and noncompliant with the officers' and the city marshal's orders to leave the house. At one point in the interaction, PO Dias told § 87(2)(b) that if she did not follow the city marshal's orders, she could be arrested for trespassing. PO Velotti did not remember if PO Dias used any profanities while interacting with § 87(2)(b) but stated that he did not tell her to, "Get the fuck out of the house" (Board Review 11).

A person is guilty of Obstructing Government Administration in the second degree when that person "intentionally obstructs, impairs or perverts the administration of law or other governmental function" or "prevents or attempts to prevent a public servant from performing an official function" through interference or any independently unlawful act. N.Y.S. Penal Law, Section 195.05 (Board Review 18).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated** and **Allegation F** be closed as **exonerated**.

Squad: 7

Investigator:	_____	<u>FILIP WORONIECKI</u>	<u>02/28/2017</u>
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date